

25TRCV02340 25TRCV02340

County: los-angeles

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Case Number: 25TRCV02340 Hearing Date: August 20, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

NORMAN SMITH

;

Petitioner,

vs.

USAA

CASUALTY INSURANCE COMPANY

;

Respondent.

Case

No.:

25TRCV02340

Hearing

Date:

August
20, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PETITIONER NORMAN SMITH'S MOTION TO DISQUALIFY
COUNSEL AND LAW FIRM

MOVING PARTY: Petitioner, Norman Smith

RESPONDING PARTY: No opposition.

(1)

Petitioner

Norman Smith's Motion to Disqualify Counsel and Law

Firm is DENIED pursuant to Code of Civil Procedure section 128, subdivision
(a)(5).

The Court considers the moving papers filed on May 22, 2026, the
supplemental declaration filed on July 7, 2026, and the reply brief filed on August
13, 2026.

BACKGROUND

Factual Background

On July 16, 2025, petitioner Norman
Smith ("Petitioner") filed the Petition to Compel Arbitration of Underinsured
Motorist Claim against respondents USAA Casualty Insurance Company ("Respondents")
and DOES 1 through 10.

On July 23, 2026, Respondent

filed the Notice of Change of Firm Name and Notice of Change of Lead Handling Attorney.

On June 30, 2026, Respondent filed the Substitution of Attorney – Civil, notifying the Court that the Law Office of Keevil L. Markham would no longer represent Respondent, and that Stephen C. Pasarow from Knapp, Petersen & Clarke would be taking over as counsel.

LEGAL STANDARD

Code of Civil Procedure

section 128, subdivision (a)(5), authorizes the Court “[t]o control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto.” This authority necessarily includes disqualifying an attorney. (*Metro-Goldwyn-Mayer, Inc. v. Tracinda Corp.* (1995) 36 Cal.App.4th 1832, 1837-1838 (*Metro-Goldwyn-Mayer, Inc.*).)

The Court of Appeal has

stated: “The issue of disqualification ultimately involves a conflict between the clients’ right to counsel of their choice and the need to maintain ethical standards of professional responsibility. The paramount concern, though, must be the preservation of public trust in the scrupulous administration of justice and the integrity of the bar. The recognized and important right to counsel of one’s choosing must yield to considerations of ethics that run to the very integrity of our judicial process.” (*Metro-Goldwyn-Mayer, Inc.*, *supra*, 36 Cal.App.4th at p. 1838, citation marks omitted.)

“Whether an attorney should be disqualified is a matter addressed to the sound discretion of the trial court.” (*Henriksen v. Great American Savings & Loan* (1992) 11 Cal.App.4th 109, 113.) “In exercising that discretion, the trial court is required to make a reasoned judgment which complies with the legal principles and policies applicable to the issue at hand.” (*Ibid.*)

DISCUSSION

Petitioner moves for the following relief: (1) the disqualification of Marc S. Lafer and the Law Office of

Keevil L. Markham from further representation of Respondent; (2) an order directing Respondent to retain new independent counsel; (3) an order for the sequestration of all medical records and protected health information related Petitioner, currently in the possession, custody, or control of Respondent's former counsel, which were allegedly obtained outside of any lawful process; (4) the issuance of a protective order that prohibits the use, disclosure, or derivative use of any work product derived from those records; and (5) the granting of any additional relief that the Court deems just and proper. (Motion, pp. i:22-ii:3.)

Petitioner alleges that Respondent's former counsel, Marc S. Lafer and the Law Office of Keevil L. Markham, filed false proofs of service, misrepresented the service of discovery and other documents, produced altered proofs of service, and obtained medical records without proper authorization or statutory notice. (Motion, pp. 1:3-10:8; Reply, pp. 3:16-4:10.) However, the Court observes that Petitioner's requests are either moot or insufficiently argued.

On June 30, 2026, Respondent filed the Substitution of Attorney – Civil, notifying the Court that the Law Office of Keevil L. Markham would no longer represent Respondent, and that Stephen C. Pasarow from Knapp, Petersen & Clarke would be taking over as counsel. Consequently, Petitioner's requests to disqualify Marc S. Lafer and the Law Offices of Carmin K. Shaffer from any further representation of Respondent, as well as the request for Respondent to engage new independent counsel, are now moot. (See *La Jolla Cove Motel & Hotel Apartments, Inc. v. Superior Court* (2004) 121 Cal.App.4th 773, 781-781 [wherein the Court of Appeal determined that a motion is "rendered technically moot" when the attorneys facing disqualification are no longer acting as counsel for a party involved in the action].)

Petitioner contends that the motion is not moot under *Truck Ins. Exchange v. Fireman's Fund Ins. Co.* (1992) 6 Cal.App.4th 1050, 1057 (Truck), and *Oaks Management Corporation v. Superior Court* (2006) 145 Cal.App.4th 453, 457, fn. 1 (Oaks). (Reply, pp. 2:21-3:5.) The Court disagrees.

Petitioner cites *Truck*, supra, 6 Cal.App.4th at p. 1057, to assert that, "the Court of Appeal held that 'a law firm that knowingly undertakes adverse concurrent representation may not avoid disqualification by withdrawing from the representation of the less favored client before hearing.' The court reasoned that

permitting such a maneuver would provide 'little incentive for attorneys to avoid dual employment by adverse parties in the first place.' (Id. at pp. 1057-1058.)" (Reply, p. 2:21-27.) However, the Court observes that this case is not pertinent to the present situation. As indicated by Petitioner's own quotations, the Court of Appeal was addressing issues of concurrent representation and dual employment, neither of which is applicable here, as Petitioner does not accuse Respondent's counsel of such practices.

Additionally, Petitioner references *Oaks*, supra, 145 Cal.App.4th at p. 457, contending that "the Court of Appeal held that a court has 'inherent discretion to resolve issues of continuing public interest, even though those issues may have become moot in the particular case before it.' " (Reply, p. 3:1-3.) Nonetheless, Petitioner fails to identify the relevant "continuing public interest" that warrants the Court's consideration, notwithstanding the moot nature of the motion.

Instead, Petitioner argues, "The substitution here underscores rather than undermines the need for a ruling. The Law Offices of Keevil L. Markham -- formerly the Law Offices of Carmin K. Shaffer, as reflected by a Notice of Change of Firm Name filed July 23, 2026 -- is USAA's own staff counsel operation. As the Court of Appeal recognized in *Gafcon, Inc. v. Ponsor & Associates* (2002) 98 Cal.App.4th 1388, 1412, salaried employee attorneys and in-house counsel are subject to the same professional conduct rules as outside counsel. The false and misleading proofs of service were generated by USAA's own staff using USAA's own systems. The individuals who signed them are USAA employees. ¶ USAA cannot distance itself from the conduct of its own people by hiring outside counsel after the misconduct was exposed." (Reply, p. 3:6-15.)

Here, the Court finds that this situation does not constitute a continuing public interest. Petitioner does not present any argument elucidating how these matters impact the public or how the alleged conduct is likely to recur. As such, these first two requests are moot.

Regarding Petitioner's requests for sequestration and a protective order, the Court notes that Petitioner does not adequately justify the necessity of these requests. Petitioner states, "A sequestration order or protective order depends, by its nature, on counsel's compliance. The Court would

order counsel to segregate and not use the records. Such an order would require reliance on counsel's representations. The record establishes that such reliance cannot be presumed. Disqualification is the only adequate remedy." (Motion, p. 15:8-11.) Thus, Petitioner appears to contradict themselves by concurrently requesting sequestration and a protective order while asserting that "[d]isqualification is the only adequate remedy." Furthermore, Petitioner does not demonstrate why either sequestration or a protective order would be appropriate under these circumstances, particularly in light of Respondent's new counsel.

Accordingly, the Petitioner's motion is DENIED.

ORDERS

1) Petitioner

Norman Smith's Motion to Disqualify Counsel and Law Firm is DENIED.

2) Petitioner

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 20, 2026

Tamara
Hall

Judge
of the Superior Court